

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Case No. 07-cv-01355-LTB-MJW

UNITED STATES OF AMERICA FOR THE USE AND BENEFIT OF SUN CONSTRUCTION
COMPANY, INC., a Colorado corporation,

Plaintiff,

and

FIDELITY AND DEPOSIT COMPANY OF MARYLAND, a Maryland corporation,

Intervenor Plaintiff,

v.

TORIX GENERAL CONTRACTORS, LLC, a Colorado limited liability company f/k/a Alliance
General Contractors, LLC; and ST. ANDREWS/ALLIANCE JOINT VENTURE, a joint venture,

Defendants and Counterclaimants,

and

TRAVELERS CASUALTY AND SURETY COMPANY OF AMERICA, a Connecticut
corporation,

Defendants.

SPECIAL VERDICT

JURY VERDICT FORM NO. 1

**SUN CONSTRUCTION COMPANY, INC.'S ("Sun") AND/OR FIDELITY AND DEPOSIT
COMPANY OF AMERICA'S ("F&D") CLAIMS AGAINST TORIX GENERAL
CONTRACTORS, LLC and ST. ANDREWS/ALLIANCE JOINT VENTURE ("JV") AND
TRAVELERS CASUALTY AND SURETY COMPANY OF AMERICA ("Travelers") :**

We, the Jury, present our answers to the following questions submitted by the Court, and unanimously find as follows:

1. Do you find that Sun and/or F&D have proven their claims against the JV and Travelers?

YES ✓

NO _____

If your answer to Question No. 1 is YES, then answer Question No. 2. If your answer is NO, then sign this form and skip to Jury Verdict Form No. 2.

2. If your answer to Question No. 1 is YES, then enter the total amount of Sun and/or F&D's damages, in an amount of not less than \$1.00.

\$ 4,143,416.00

3. Enter the portion of the total amount set forth in Paragraph 2 above to which F&D is entitled pursuant to its assignment/subrogation claim.

\$ 1,300,000.00

PLEASE SIGN THIS VERDICT FORM.

Dated this 22 day of November, 2010.

GO TO VERDICT FORM NO. 2.

JURY VERDICT FORM NO. 2

TORIX GENERAL CONTRACTORS, LLC'S and ST. ANDREWS/ALLIANCE JOINT VENTURE'S ("JV") CLAIMS AGAINST SUN CONSTRUCTION COMPANY, INC. ("Sun") AND/OR FIDELITY AND DEPOSIT COMPANY OF AMERICA ("F&D"):

We, the Jury, present our answers to the following questions submitted by the Court, and unanimously find as follows:

1. Do you find that the JV has proven its claims against Sun?

YES _____

NO /

If your answer to Question No. 1 is YES, then answer Question No. 2. If your answer is NO, then sign this form.

2. Do you find that the JV has proven its claims against F&D?

YES _____

NO _____

3. If your answer to Question No. 1 is YES, then enter the total amount of the JV's damages in an amount of not less than \$1.00. If your answer is NO, then sign this form.

\$ _____

4. If your answer to Question No. 2 is YES, then enter the portion of the total amount set forth in paragraph 3 above to which the JV is entitled against F&D under the bond in an amount of not less than \$1.00. If your answer to Question No. 2 is NO, then sign this form.

\$ _____

PLEASE SIGN THIS VERDICT FORM.

Dated this 22
/ day of November, 2010.